

25STCV05231 25STCV05231

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-06-24

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Case Number: 25STCV05231 Hearing Date: June 24, 2026 Dept: 732

Edna Isayan v. Big Sav Discount Store., et al.

Wednesday, June 24, 2026

CASE NUMBER: 25STCV05231

UNOPPOSED

Defendants Big Sav Discount Store's and Brand

LLC's Motions to Compel Responses to Requests for Production from Plaintiff

Edna Isayan _____

Facts: This is an action for negligence and

premises liability. The Complaint alleges as follows. Plaintiff Edna Isayan

("Plaintiff") was injured in a slip and fall in a puddle of liquid negligently

permitted to remain on the premises of Defendants Big Sav Discount Store and

Brand LLC. (Complaint at pp. 5–6.)

Procedural History:

Plaintiff filed the Complaint on

January 28, 2025, alleging two causes of action:

1. Negligence

2. Premises Liability

Defendants Big Sav

Discount Store and Brand LLC filed the present motions to compel on May 21,

2026. No opposition has been filed.

Analysis:

I.

MOTIONS TO

COMPEL

A propounding party may demand a responding

party to produce documents that are in their possession, custody or control.

(Code Civ. Proc., § 2031.010.) A party may likewise conduct discovery by

propounding interrogatories to another party to be answered under oath. (Code

Civ. Proc. § 2030.010, subd. (a).) The responding party must respond to the

production demand either by complying, by representing that the party lacks the

ability to comply, or by objecting to the demand. (Code Civ. Proc., §

2031.210.) The responding party must respond to the interrogatories by

answering or objecting. (Code Civ. Proc. § 2030.210, subd. (a).) If the

responding party fails to serve timely responses, the propounding party may move for an order compelling responses to the production demand and interrogatories. (Code Civ. Proc., §§ 2030.290, 2031.300.)

A

party who fails to serve a timely response to interrogatories or a demand for inspection waives any objection to the demand. (Code Civ. Proc., §§ 2030.290, 2031.300.)

Defendants Big Sav Discount Store and Brand, LLC (“Defendants”) bring motions to compel responses from Plaintiff Edna Isayan (“Plaintiff”) to Demands for Production. Defendants served the demands upon Plaintiff on January 5, 2026, with an agreed upon extended deadline for response of April 13, 2026. (Brockenbrow Decl. ¶¶ 2–6.) Plaintiff has not provided responses despite Defendants’ attempts to meet and confer. (Brockenbrow Decl. ¶¶ 7–11.)

Defendants have demonstrated that Plaintiff has failed to serve responses, timely or untimely, to the discovery at issue, and are therefore entitled to responses. Plaintiff has filed no opposition to the motions.

The motions are therefore GRANTED. Responses shall be served, without objections, within 20 days of this order.

1.

Sanctions

The

prevailing party on a motion to compel is generally entitled to monetary

sanctions, unless the court “finds that the one subject to the sanction acted

with substantial justification or that other circumstances make the imposition

of the sanction unjust.” (Code Civ. Proc. §§ 2030.290, 2031.300.) Sanctions are

also mandatory against a party whose failure to serve responses to requests for

admission makes the motion necessary. (Code Civ. Proc. § 2033.280, subd. (c).)

Defendants

seek \$390 per motion, representing two hours of attorney work at \$165 per hour

on each motion, plus a \$60 filing fee. (Brockenbrow Decl. ¶ 12.)

Sanctions

are awarded against Plaintiff and counsel in the amount of \$780.00.

Superior Court of California

County of Los Angeles

Department 732

EDNA ISAYAN,

Plaintiff,

v.

BIG

SAV DISCOUNT STORE., et al.,

Defendants.

Case No.:

25STCV05231

Hearing Date: June 24, 2026

[TENTATIVE] RULING RE:

Defendants Big Sav Discount Store's and Brand LLC's Motions to

Compel Responses to requests for production from Plaintiff Edna Isayan

Defendants Big Sav Discount Store's and Brand LLC's Motions

to Compel Responses to Requests for Production from Plaintiff Edna Isayan are

GRANTED. Plaintiff shall serve responses without objections within 20 days of

this order. Sanctions are awarded against Plaintiff and her counsel in the

amount of \$780, to be paid within 20 days of this order.

Defendants to provide notice.

Dated: June 24, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court